

SYSTEMIC INSTITUTIONAL FAILURE IN THE ADMINISTRATION OF JUSTICE:

A Forensic Analysis Across Six Judicial Decisions and Four Jurisdictions

PART 1 — WHO I AM AND WHY I AM WRITING

My name is Nadia Zahmoul. I am a litigant in person. I have formal diagnoses of Autism Spectrum Condition (CLAAS, Central London Adult Autism Service, 1 July 2025, assessment date 15 May 2025), Post-Traumatic Stress Disorder (DSM-IV diagnosis, Cottonwood Tucson, Arizona, April 2013), and Sjogren syndrome, a chronic autoimmune condition confirmed by biopsy and affecting my daily functioning. I have been managing three concurrent diagnosed conditions without legal representation throughout four parallel High Court proceedings since 2020. I have a BSc in Economics from the London School of Economics and an MBA in Finance from Columbia Business School. I do not have a background in law. I am writing to the Justice Committee in my capacity as a disabled woman who has been systematically harmed by institutional failures in the administration of justice, and who requires this Committee to act.

The harm began in February 2024. It is ongoing as at the date of this submission. It has been documented across six judicial decisions, four courts, and four jurisdictions. It has been referred to the Metropolitan Police, the IRS, the SEC, Action Fraud, the Attorney General, Parliament, and the Lord Chancellor. It has not been addressed by any institution with the power to address it.

I am not asking the Justice Committee for sympathy or assistance. I am placing formal institutional responsibility on this Committee. The evidence set out in this submission is complete, verified, logically structured, and independently verifiable. I require the Committee to open an urgent inquiry and to make findings. If the Committee declines to act, I require it to state its reasoning in writing.

PART 2 — THE OVERRIDING QUESTION

A single question runs through this entire submission:

Does an identifiable judicial determination of the actual case — on its actual evidence, with its actual clinical context, with its actual pending applications determined — exist?

As at 6 April 2026: it does not.

Six decisions across four courts and over two years have engaged with a simplified or mischaracterised version of the case. Each has compounded the last by creating a history that subsequent courts read as lack of merit rather than evidence of a case that has never been properly heard.

The pattern is not anecdotal. It is documented. The logic analysis attached to this submission sets out, finding by finding, how each decision failed to engage with the actual grounds before it. The chains are built from primary sources — court documents, transcripts, sealed orders, clinical records — that are publicly archived and independently verifiable.

PART 3 — THE DISABILITY DIMENSION

I am autistic. I have PTSD. Both conditions were before the court throughout the family proceedings. Participation measures were ordered by MacDonald J for the trial of February 2024: frequent breaks, restricted questioning, screened seating, assistance in the witness box. The trial transcript records 22 references to my PTSD and autism during oral evidence.

The judgment handed down on 18 April 2024 (EWFC 79) is 111 paragraphs long. It contains zero references to disability, autism, PTSD, or Part 3A of the Family Procedure Rules.

Paragraph 64 of that judgment — the most consequential finding in the entire sequence — attributes to me an 'obsession' with finding hidden assets, based on my presentation in the witness box. That presentation is clinically explained by autism under adversarial stress. The court had 22 oral-record reasons to attribute it to disability rather than character. It chose not to. It did not mention disability once.

CLAAS confirmed on 20 June 2025 that my autism is lifelong — I was born with this condition. It existed at every hearing. Every finding that attributes deliberate intent to my conduct is a finding made without engaging the clinical explanation for that conduct.

The participation measures ceased on or about 28 February 2024 — the last day of the trial — without order, without notice, without reassessment. HMCTS confirmed in its letter of 14 November 2025 that no judicial order records the revocation. There is an administrative void where a judicial determination should be.

Every costs order, every adverse character finding, every application dismissed as totally without merit traces back to para 64 of EWFC 79. Para 64 is built on the autistic communication it was designed to accommodate and then chose to characterise as misconduct. The financial consequence of that originating fabrication is £1,055,654.50 — £800,000 add-back plus £255,654.50 costs — imposed on a disabled woman in proceedings where the court had ordered, and then silently removed, the measures designed to ensure her equal participation.

This is the harm. It is specific. It is documented. It is ongoing.

PART 4 — THE INSTITUTIONAL FAILURE PATTERN

The table below summarises the pattern across the six decisions analysed. The full logic model for each decision is in the attached Series A documents.

Decision	Court / Date	Key analytical findings	Tags
D4 — EWFC 79 18 Apr 2024 <i>Final judgment</i>	MacDonald J Family Division	111 paragraphs. Zero disability references. 22 oral references suppressed. Para 64: autism characterised as obsession — no evidential basis. Para 76: Oxus \$0 accepted — D11 suppressed, not engaged. Para 96: 'no expert evidence on disability' — Prof Libby letter was in the bundle. Participation measures ceased without order the same week.	FABRICATED MISCHARACTE RISED SUPPRESSED UNSUPPORTED
D6 — EWFC 114 24 May	MacDonald J Family Division	Para 64 fabrication converted into financial penalty. Double sanction: £800k add-back plus £255,654.50	FABRICATED SUPPRESSED UNSUPPORTED

Decision	Court / Date	Key analytical findings	Tags
2024 <i>Costs judgment</i>		costs = £1,055,654.50 on the same conduct. Order face: 'UPON hearing BM KC' — BM stepped down 11 weeks earlier. No hearing took place — decided on written submissions only. MPS causal chain: respondent's breach → NZ's non-participation → costs order against her.	
D8 — Moylan LJ 23 Dec 2024 <i>PTA refused</i>	Moylan LJ Court of Appeal	Applied Volpi v Volpi to a fabricated finding — Volpi protects evidence-based findings. Four standalone grounds not addressed: MPS causal chain, Coinbase, EA 2010 s.149, post-trial participation. Oxus perjury conflated with factual findings appeal — two legally distinct questions. Appellate route closed.	MISCHARACTE RISED SUPPRESSED UNSUPPORTED
D12 — May 2025 8 May 2025 <i>Set-aside dismissed</i>	MacDonald J Family Division	Recusal application filed daily from 10 February 2025: 68 paragraphs, zero mentions. Dr Poyser letter: Finding B (autism query) omitted. Finding C (advocacy request) inverted. Para 62: 'wholly satisfied wife actively and deliberately sought to frustrate' — all four analytical tags apply. NZ absent. KZ's uncontested account adopted in its entirety.	FABRICATED MISCHARACTE RISED SUPPRESSED UNSUPPORTED
D13 — King LJ 4 Aug 2025 <i>Reopen refused</i>	King LJ Court of Appeal	Found Moylan LJ 'engaged with all extensive grounds' without identifying what he said about MPS, Coinbase, EA 2010 s.149, or post-trial participation. Part 3A: hearing period addressed again; post-trial period unaddressed again. Domestic appellate route closed.	MISCHARACTE RISED UNSUPPORTED
D15 — Collins Rice J 11 Mar 2026 <i>JR refused TWM</i>	Collins Rice J Administrative Court	Characterised administrative failures as relating to judicial determinations — no judicial act identified for any ground. EA 2010 s.149 judicial exemption applied to administrative acts. Costs of £3,125.50 against disabled LiP without recorded s.149 engagement. Out-of-time finding applied globally to continuing failures.	MISCHARACTE RISED UNSUPPORTED

Four matters have never been addressed at any level of the domestic courts: the MPS causal exclusion chain; Coinbase non-disclosure; EA 2010 s.149 as a standalone duty; and the post-trial participation void. The appellate route is closed over them, not through them.

PART 5 — THE CRIMINAL DIMENSION AND THE RAKISHEV NETWORK

In parallel with the institutional failure analysis, I have made criminal referrals to the Metropolitan Police (CCR-6501-26-0100-000; CRN 01/7340002/26), the IRS Criminal Investigations New York (active engagement confirmed by Special Agent Robert McGarry), the SEC Whistleblower Program (TCR 17284-760-060-567), and Action Fraud. The complete referral package — 522 pages, 18 documents — was submitted to the Commissioner of the Metropolitan Police (Sir Mark Rowley) on 30 March 2026.

The perjury allegation — documented facts

On 16 January 2024 — 34 days before trial — my former husband signed an SEC Proxy Statement (CIK 1852973) stating his 50,000 Oxus Founder Shares had a market value of approximately \$565,000. On 7 February 2024 the Business Combination closed. On 8 February 2024 he was photographed at the Nasdaq Exchange alongside Kenes Rakishev at the public launch of the new company (BRLS / Borealis Foods) — 11 days before trial. On 22 February 2024 he testified under oath that those shares had \$0 value. His counsel repeated \$0 on three separate days of the trial.

This was a false statement. The shares were publicly traded on Nasdaq and had a market value of approximately \$550,000 at that time.

On 6 March 2024, his counsel emailed the court asking the judge not to read my submission about the Oxus perjury. The D11 application was not sealed. The judgment of 18 April 2024 is entirely silent on the Oxus perjury. MacDonald J dismissed the contempt application on 8 May 2025 on the ground that Oxus was 'not matrimonial property' — a ground legally irrelevant to Perjury Act 1911 s.1.

On 21 May 2025, I filed a formal referral to the Attorney General (Lord Hermer KC) requesting that he consider bringing contempt proceedings in respect of the false representations. The referral was addressed to the Attorney General's office, copied to the SEC Chairman and all four SEC Commissioners, the Lord Chancellor, the Lady Chief Justice, and a wide parliamentary distribution. It attached the contempt application, identifying the three false representations directed by the respondent through his counsel on 19, 26 and 28 February 2024. No response was received. No acknowledgement was provided. The Attorney General did not act.

The perjury question — was the sworn statement of \$0 true or false — has never been answered by any court or authority at any level. Every route has been closed without engaging the substance: D11 suppressed, final judgment silent, contempt dismissed on irrelevant ground, Attorney General silent, Court of Appeal closed, Judicial Review dismissed without identifying a single judicial act governing the ground.

The Rakishev network — public interest dimension

Kenes Rakishev appointed my former husband to the Oxus board in June 2022. They were photographed together at Nasdaq 11 days before trial. Rakishev is the controlling shareholder of Oxus Acquisition Corp.

Dame Margaret Hodge named Rakishev in Parliament on 3 February 2022 as one of 20 Kazakhs with massive unexplained wealth, with close ties to Ramzan Kadyrov — sanctioned by OFAC under the Magnitsky Act. Rakishev's company manufactures military vehicles one of which was identified with Kadyrov's forces in Mariupol in April 2022.

On 19 February 2026, Andrew Mountbatten-Windsor was arrested on suspicion of misconduct in public office during his tenure as the UK's Special Representative for International Trade and Investment from 2001 to 2011. This involves dealings with Kenes Rakishev and the Kazakh network which in the past have come under scrutiny, including the sale of Mountbatten-Windsor's former house at Sunninghill Park in 2007, allegedly for £3 million over the asking price. An April 2011 email confirms Andrew brokered a £385 million deal via Rakishev while serving as UK Special Representative for Trade and Investment.

The Rakishev/Oxus strand in my case and the Thames Valley Police investigation concern the same network. The JR was the only domestic public law mechanism by which this connection could have been examined. It was dismissed as wholly misconceived without identifying a judicial act governing the Oxus ground.

The Justice Committee does not have jurisdiction over criminal matters. I note this dimension for completeness and to ensure the Committee understands the full context of what it is being asked to investigate.

PART 6 — WHAT I REQUIRE FROM THE JUSTICE COMMITTEE

I require the following:

1. An urgent inquiry into whether the justice system has adequate mechanisms to protect disabled litigants from the pattern of compounding institutional failures documented in this submission.
2. Specifically: whether the absence of any identifiable judicial determination of the post-trial participation void — confirmed by HMCTS itself — is consistent with the constitutional operation of the justice system.
3. Specifically: whether the Administrative Court's refusal of JR permission in AC-2025-LON-004293 on the basis that the claim 'relates to judicial determinations' — without identifying those determinations — is consistent with the legal distinction between judicial acts and administrative acts.
4. Specifically: whether a costs order of £3,125.50 against a disabled LiP, without recorded EA 2010 s.149 engagement, is consistent with the Public Sector Equality Duty.
5. The Committee's findings, in writing, on each of the above points.
6. If the Committee declines to open an inquiry, its written reasons.

I also require the Administrative Court to address AC-2025-LON-004293 properly and expeditiously. The claim was characterised as wholly misconceived without engaging its substance. The binary question it posed — does an identifiable judicial act govern each administrative failure? — was not answered. I require it to be answered.

PART 7 — ATTACHED DOCUMENTS

Two complementary analytical formats accompany this submission. They serve different purposes and different audiences. Together they are stronger than either alone.

Chronological Table of Orders and Decisions

The table below sets out every order and decision in these proceedings in chronological order across all four jurisdictions.

Date	Court / Judge	Citation / Reference	Nature	Outcome / Key point
9 Jun 2023	MacDonald J Family Div.	EWFC 111 BV20D01752	LSPO / MPS application	LSPO partially granted. MPS order made. EA 2010 s.149 not engaged. False equivalence between parties established.
28 Nov 2023	MacDonald J Family Div.	EWFC 210 BV20D01752	Variation of interim arrangements	Freezing order discharged without engaging non- disclosure grounds. Mutual blame narrative compounded.
18 Apr 2024	MacDonald J Family Div.	EWFC 79 BV20D01752	Final judgment	111 paragraphs. Zero disability references. Para 64: autism characterised as obsession. Oxus \$0 accepted. Prof Libby letter

Date	Court / Judge	Citation / Reference	Nature	Outcome / Key point
				suppressed. £800k add-back.
29 Apr 2024	MacDonald J Family Div.	PTA refused BV20D01752	<i>Permission to appeal — on papers</i>	Refused. Oxus characterised as non-matrimonial / procedural. D11 not engaged.
24 May 2024	MacDonald J Family Div.	EWFC 114 BV20D01752	<i>Costs judgment — written submissions only</i>	£255,654.50 costs against NZ. No hearing. BM KC stepped down 11 weeks earlier. Order face contains two false statements. Double sanction: £1,055,654.50 total.
24 May 2024 (amended 3 Jun 2024)	MacDonald J Family Div.	Final Order BV20D01752	<i>Sealed final order</i>	Six unilateral draft iterations. Para 34 (MPS remission) inserted without notice or hearing. NZ had £89 at sealing.
23 Dec 2024	Moylan LJ Court of Appeal	CA-2024-001342	<i>PTA refused — on papers</i>	17 grounds refused. Volpi v Volpi applied to fabricated finding. MPS, Coinbase, EA 2010 s.149, post-trial participation not addressed. Appellate route closed.
14 Feb 2025	HHJ Ashby Family Div.	Order 3 BV20D01752	<i>Procedural directions</i>	Administrative directions order. Neutral.
10 Feb 2025 onwards	MacDonald J Family Div.	BV20D01752	<i>Recusal application — filed daily</i>	Filed from 10 February 2025. Never listed. Never determined. Never mentioned in any subsequent judgment.
9 Apr 2025	MacDonald J Family Div.	BV20D01752	<i>Hardship application dismissed</i>	Dismissed. MPS enforcement application not addressed. EA 2010 s.149 not engaged.
8 May 2025	MacDonald J Family Div.	BV20D01752	<i>Set-aside dismissed — ex tempore</i>	NZ absent. Recusal application pending: not mentioned. Dr Poyser letter: Finding B omitted, Finding C inverted. Para 62: deliberate frustration found. Indemnity costs. S.39 SCA 1981 invoked.
4 Aug 2025	King LJ Court of Appeal	CA-2024-001342-A	<i>CPR 52.30 reopen refused — on papers</i>	Found Moylan LJ 'engaged with all extensive grounds' without identifying what he said about MPS, Coinbase, EA 2010 s.149, or post-trial participation. Domestic appellate route closed.
4 Dec 2025	Lieven J Admin. Court	AC-2025-LON-004293	<i>JR directions — urgent consideration refused</i>	Directions given. Urgent consideration refused.
11 Mar 2026	Collins Rice J Admin. Court	AC-2025-LON-004293	<i>JR permission refused TWM — costs £3,125.50</i>	Claim characterised as relating to judicial determinations — no judicial act identified for any ground. EA 2010 s.149 judicial exemption applied to administrative acts. Costs against disabled LiP without s.149 engagement.

Date	Court / Judge	Citation / Reference	Nature	Outcome / Key point
12 Mar 2026	Admin. Court	AC-2025-LON-004293	<i>CPR 3.1(7) revocation application — sealed</i>	Filed and sealed 10:36am. No response as at date of this submission.
16/19 Jan 2026	Recorder Sirikanda Family Div.	FA-2026-000019	<i>Decree Absolute / appeal filed</i>	Decree Absolute. Appeal filed 19 January 2026. No hearing listed. Standstill.

Series A — Logic Models (IF/AND/THEN/THEREFORE format)

Each document applies a formal logical structure to a single decision. Every premise is grounded in a primary source — court document, transcript, sealed order, or clinical record — that can be tested independently. This format is designed for an investigating officer, an MP, or a judge who needs to assess each analytical step without first reading the full case record.

- Decision 4 — EWFC 79 — 18 April 2024 — Final judgment — Zahmoul_LogicModel_OptionB_EWFC79_3Apr2026.docx
- Decision 6 — EWFC 114 — 24 May 2024 — Costs judgment — Zahmoul_LogicModel_OptionB_EWFC114_6Apr2026.docx
- Decision 8 — Moylan LJ — 23 December 2024 — PTA refused — Zahmoul_LogicModel_OptionB_MoylanLJ_3Apr2026.docx
- Decision 12 — MacDonald J — 8 May 2025 — Set-aside dismissed — Zahmoul_LogicModel_OptionB_May2025_3Apr2026.docx
- Decision 13 — King LJ — 4 August 2025 — Reopen refused — Zahmoul_LogicModel_OptionB_KingLJ_6Apr2026.docx
- Decision 15 — Collins Rice J — 11 March 2026 — JR permission refused — Zahmoul_LogicModel_OptionB_CollinsRice_6Apr2026.docx

Series B — Complete Forensic Judgment Analysis (three-source-category table format)

This document analyses each finding against three primary source categories: (1) oral evidence from the full attendance notes of the final hearing; (2) written evidence in the bundle; and (3) counsel's written and oral submissions. It is richer in primary source detail than the logic models — including attendance note line references, specific bundle page numbers, and the cumulative pattern analysis across five decisions by the same judge. It is designed for a parliamentary researcher, journalist, academic, or barrister who requires evidentiary depth.

- Complete Forensic Judgment Analysis — Part 1 of 3 (Family Division: five decisions, June 2023 to May 2025) — CompleteJudgmentAnalysis_Part1_3Apr2026.docx

Note: Part 1 covers the five Family Division decisions. Parts 2 (Court of Appeal) and 3 (Administrative Court) are in preparation and will be transmitted as they are completed.

Series C — Decision Map

- Decision Map v2 — 16 decisions across 4 jurisdictions, colour-coded by analytical tag — Zahmoul_DecisionMap_v2_3Apr2026.docx

Series D — Statement of Key Takeaways

- Statement of Key Takeaways and Current Position — 7 April 2026 — Zahmoul_Statement_KeyTakeaways_7Apr2026.docx

Series E — Supporting Evidence

The following four documents provide evidentiary depth on the specific institutional failures this submission asks the Committee to investigate. They are analytical and sourced documents, not criminal referral materials.

- The Suppression of Disability — Mechanism Analysis (how all adverse findings were produced) — Zahmoul_DisabilityPreliminary_16Mar2026.docx
- Unilateral Orders — Full Report (six draft iterations of the final order, NZ excluded throughout) — Zahmoul_UnilateralOrders_FullReport_15Mar2026.docx
- JR Annex — AC-2025-LON-004293 (69-entry chronological record of JR proceedings, no engagement) — Zahmoul_JR_Annex_18Mar2026.docx
- Suppression of MPS — Para 34 Analysis (MPS arrears remitted without hearing, notice or determination) — Zahmoul_Suppression_of_MPS.docx

The complete package including criminal referral materials is publicly archived at:
<https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

Yours faithfully,

Nadia Zahmoul

Litigant in Person

nadia@rosekross.com

7 April 2026

Case references: BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-2026-000019

Crime references: CCR-6501-26-0100-000 | CRN 01/7340002/26 | SEC TCR 17284-760-060-567